

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

ELITE LOGISTICS CORP., *Complainant*

v.

TANERA TRANSPORT LLC, *Respondent*.

DOCKET NO. 25-27

Served: January 28, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER FINDING RESPONDENT TO BE IN DEFAULT, REJECTING EMAILED MOTION FOR
DEFAULT DECISION, AND REQUESTING ADDITIONAL INFORMATION**

A. Finding of Default

Elite Logistics Corp. (“Complainant”) filed a Complaint with the Office of the Secretary on December 1, 2025, naming Tanera Transport LLC (“Respondent”) as a Respondent. The Office of the Secretary issued a Notice of Filing of the Complaint on December 4, 2025.

In brief, the Complaint alleges that Complainant is a motor carrier, and that Respondent is an ocean transportation intermediary (“OTI”). Complainant alleges that Respondent violated 46 U.S.C. § 41102(c) by failing to establish, observe and enforce just and reasonable cargo-handling practices, namely Respondent failed to pay six invoices for the transportation of nine containers. Complainant adds that it filed this Complaint because Respondent’s surety denied Complainant’s claim because a judgment had not yet been obtained per 46 C.F.R. § 515.23.

The Commission’s rules provide that:

A respondent must file with the Commission an answer to the complaint . . . within 25 days after the date of service of the complaint by the Commission . . . or unless a motion is filed to withdraw or dismiss a complaint, in which latter case, answer must be filed within 10 days after service of an order denying such motion.

(46 C.F.R. § 502.62(b)).

A party to a proceeding may be deemed to be in default if that party fails: “to answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding.” (46 C.F.R. § 502.65(a)(2)).

Because the Complaint was served by the Office of the Secretary on December 4, 2025, the Answer was due on December 29, 2025. Respondent did not respond to the Complaint on or before December 29, 2025. Respondent appears to be in default.

On January 12, 2026, I issued an Order to Show Cause (“OTSC”) requiring the Respondent to respond to the Complaint and show cause why a decision on default should not be entered no later than January 26, 2026.

As of the date of this Order, Respondent has not responded to either the Complaint or the OTSC. I am unaware of any issues or concerns regarding whether Respondent was properly served. Therefore, pursuant to Commission Rule 65(a)(2), I find that Respondent is in **DEFAULT**. (46 C.F.R. § 502.65(a)(2)).

B. Rejecting Emailed Motion for Default Decision

On January 28, 2026, Complainant’s officer sent an email to judges@fmc.gov entitled Motion for Default Decision (the “January 28 Email”). The Initial Order dated December 8, 2025, clarifies that filings are to be emailed to the Office of the Secretary. (Initial Order, at 2, ¶ 3). Further, “[t]he email should list the filings that are attached, using the same name as on the filing. The attachment’s file name should match the name of the filing to the extent possible.” (*Id.*). In other words, the email is supposed to attach the filing separately – the email itself is not the filing. Therefore, Complainant’s January 28 Email is **REJECTED** as a filing.

If Complainant wants me to consider the material in the January 28 Email, Complainant may submit it as part of its response to my Request for Information under Commission Rule 65(c), detailed below.

C. Request for Information Under Commission Rule 65(c)

When a party is found to be in default, the presiding officer may issue a decision on default upon consideration of the record, including the complaint. (46 C.F.R. § 502.65(b)). The presiding officer, however, may require additional information or clarification when needed to issue a decision on default, including a determination of the amount of reparations. (46 C.F.R. § 502.65(c)).

Here, Complainant alleges that it is a motor carrier. (Formal Complaint, at Section 1). Respondent is allegedly an OTI. (*Id.*, at Section 2). Allegedly, from January 1, 2023, through February 1, 2025, Complainant provided drayage services for Respondent. (*Id.*, at Section 4A). Beginning in October 2024, Respondent failed to pay six invoices related to nine containers. (*Id.* at Section 4C-4D). Complainant attempted to recover from Respondent’s bond holder, but the bond holder allegedly denied the claim due to a lack of a judgment pursuant to 46 C.F.R. § 515.23. Complainant seeks \$14,163.75 in reparations.

Section 41102(c) provides that: “[a] common carrier, marine terminal operator, or ocean transportation intermediary, acting alone or in conjunction with another person, directly or indirectly, may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling storing or delivering property.” (46 U.S.C. § 41102(c)).

By regulation, the Commission identified the following five elements of a claim under § 41102(c):

- (a) the respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis; (c) the practice or regulation relates to or is connected with receiving, handling, storing or delivering property; (d) the practice or regulation is unjust or unreasonable; and (e) the practice proximately caused the claimed loss.

(46 C.F.R. § 545.4).

The Commission issued 46 C.F.R. § 545.4 in 2018. In the rulemaking for that rule, the Commission stated that: “Section 41102(c) was never intended to be a method of resolving every dispute that arises in the receiving, handling, storing or delivering of cargo.” (*Interpretive Rule, Shipping Act of 1984* (“*Interpretive Rule*”), 83 FED. REG. 64478, 64479). Instead, the Commission clarified that, historically, a violation of § 41102(c) (and its predecessor statute) requires a showing that, “. . . the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business.” (*Id.*) (citations omitted). To state a claim under § 41102(c), the act at issue must occur on a normal, customary and continuous basis. (46 U.S.C. § 41102(c); *see also Crocus Investments, LLC v. Marine Trans. Logistics, Inc.*, Dkt. No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021) (“Even six instances of ‘unreasonable conduct’ carried out over a period of several months involving the same entities have been ruled insufficient to prove that conduct was ‘uniform or continuous’ under § 41102 (or its predecessor, section 17 of the Shipping Act).”).

In light of this authority, Complainant is required to provide the following information:

1. Show (with explanation and evidence) how Respondent was acting as an ocean transportation intermediary in relation to the nine containers described in Section 4D of the Complaint.
2. Show (with explanation and evidence) how Respondent’s claimed acts or omissions are occurring on a normal, customary, and continuous basis.
3. Show (with explanation and evidence) how the practice or regulation related to or is connected with receiving, handling, storing or delivering property.
4. Show (with explanation and evidence) how the practice or regulation is unjust or unreasonable.
5. Show (with explanation and evidence) how the practice proximately caused the loss. In relation to this request, provide copies of all invoices which Complainant claims are unpaid, as well as proof that the work was actually performed, and proof of non-payment.

Complainant is **HEREBY ORDERED** to provide the information requested no later than **February 11, 2026**. It is

FURTHER ORDERED that the Complainant's responses to this order are to be signed by a party representative under penalty of perjury in accordance with 28 U.S.C. § 1746, and contain the following statement immediately above the signature block: "I declare under the penalty of perjury under the laws of the United States that the foregoing is true and correct. Executed on (date)."

SO ORDERED

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge